

25NWLC13212 25NWLC13212

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Case Number: 25NWLC13212 Hearing Date: September 2, 2026 Dept: Y

25NWLC13212: CREDITORS ADJUSTMENT BUREAU, INC., vs 786 BEST FOODS INC, et al.

Tentative Ruling Motion to Deem RFAs Admitted:

The Court has read and considered Plaintiff Creditor Adjustment Bureau, Inc.'s ("Plaintiff") Motion for Order that the Truth of the Matters Be Deemed Admitted, including the declaration of counsel and attached exhibits. No opposition has been filed by Defendant Mohammad Islam ("Defendant").

The Court finds that Plaintiff served Requests for Admission (RFA) on Defendant, who is self-represented, on June 11, 2026 and filed proof of service by mail. Other than certain documents that were provided, Plaintiff did not receive any verified responses to the RFAs. Plaintiff served the instant motion by July 29, 2026, and filed proof of service by mail. The address reflected on both proofs of service match the address Defendant provided in the Answer.

Having considered the moving papers, Plaintiff's Motion for Order that the Truth of the Matters Be Deemed Admitted is GRANTED.

The Court has also reviewed Plaintiff's request for sanctions in the amount of \$1,822.75, consisting of attorney's fees for the preparation of this motion and attendance at this hearing as well as filing costs. The Attorney Declaration states that counsel's hourly rate is \$700 per hour.

The Court finds Plaintiff's request for attorney's fees unreasonable and disproportionate for a collections case. The Court AWARDS sanctions in favor of Plaintiff and against Defendant Mohammad Islam in the amount of \$397.75, comprised of: (1) one hour for preparation at a discounted rate of \$250; (2) \$75 for counsel's appearance; and (3) filing costs of \$60 plus a \$12.75 e-filing fee.

The Court will revise and sign the Proposed Order to reflect the Court's ruling.

Plaintiff to give notice.

Tentative Ruling: Motions to Compel Responses to Plaintiff's Second Demand for Production and Special Interrogatories, Set Two

Plaintiff Creditor Adjustment Bureau, Inc. ("Plaintiff") also filed two additional motions to compel discovery responses in connection with Defendant Mohammad Islam's ("Defendant") failure to respond to Plaintiff's Requests for Admissions: (1) Plaintiff's Motion to Compel Plaintiff's Second Demand for Identification, Production, Inspection and Copying of Documents; and (2) Motion to Compel Responses to Special Interrogatories Proposed by Plaintiff to Defendant (Set Two). Both motions include requests for monetary sanctions. No oppositions have been filed by Defendant.

For the reasons stated below, both motions are DENIED.

On June 11, 2026—the same date Plaintiff served the RFAs—Plaintiff served its Request for Production, Set Two, which contained a single request:

"6. For every Request for Admission served on YOU concurrently with these Demands that was not an unequivocal admission, please state the number of Requests for Admission and provide all documents and/or WRITINGS in support of YOUR response."

The Court notes that Plaintiff's proof of service appears to reference service in 2025 rather than 2026.

On the same date, Plaintiff also served Special Interrogatories, Set Two, which contained a single interrogatory:

"10. For every Request for Admission served on YOU concurrently with these special interrogatories that was not an unequivocal admission, please provide the Request for Admission and state all facts in support of YOUR response."

No other documents requests or special interrogatories were propounded on Defendant with Set Two.

Defendant did not respond to the RFAs. Defendant likewise did not respond to the Request for Production or Special Interrogatory, Set Two.

The Court finds these two motions to compel are not substantially justified and are not reasonably calculated to obtain discovery independent of the RFAs. Each Set Two request is expressly contingent on Defendant providing non-admissions and supporting information in response to the RFAs—responses Defendant never served. Under these circumstances, the motions to compel Set Two responses are, at best, premature and, in practical effect, serve no legitimate discovery purpose.

It is a misuse of the discovery process to make, "unsuccessfully, and without substantial justification, a motion to compel ... discovery." Code Civ. Proc., § 2023.010(h). The Court further finds that filing motions to compel predicated on discovery that cannot meaningfully be answered absent RFA responses—while simultaneously seeking sanctions—constitutes an abuse of the discovery process and an improper attempt to leverage discovery motion practice through unmeritorious motions to compel.

Accordingly, Plaintiff's Motion to Compel Responses to Plaintiff's Second Demand for Identification, Production, Inspection and Copying of Documents is DENIED, and Plaintiff's Motion to Compel Responses to Special Interrogatories (Set Two) is DENIED. Plaintiff's requests for monetary sanctions in connection with these motions are also DENIED.

Plaintiff to give notice.